

Asaf Jahan v. Purwanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 30 March 2010 · Writ-C No. 15576 of 2010 · **Writ disposed; connection application to be considered under Supply Code in six weeks.**

HEADNOTE

Tenants who had applied and deposited for a new electricity connection, but had not been connected, sought mandamus to compel issue of the connection. The Division Bench did not grant the connection. It disposed of the writ observing that the pending application be considered under the U.P. Electricity Supply Code, 2005, and decided within six weeks of production of a certified copy.

FACTUAL SUMMARY

The petitioners, tenants of a house, applied to Purwanchal Vidyut Vitran Nigam Ltd. for an electricity connection and paid deposits, but no connection was released. They filed Writ-C No. 15576 of 2010 in the Allahabad High Court seeking a mandamus to respondent no. 2 to issue the connection. Counsel for the petitioners and for respondent nos. 1 and 2 were heard. The Court recorded that it was for the licensee to consider the application and take appropriate action on it.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

new connection application

HOLDING

A writ seeking mandamus to issue an electricity connection is disposed of with a direction that the pending application be considered under the U.P. Electricity Supply Code, 2005, and decided within six weeks of production of a certified copy; the Court does not itself direct grant of the connection. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy Tenants who had applied and deposited for a new electricity connection, but had not been connected, sought mandamus to compel issue of the connection. The Division Bench did not grant the connection. It disposed of the writ observing that the pending application be considered under the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE TENANT-PETITIONERS WERE ENTITLED ON MERITS TO A NEW ELECTRICITY CONNECTION

Left to the licensee to consider under the Supply Code. ¶ 1